

1.

CASE #	CASE NAME	HEARING NAME
CVPS2405283	JPMORGAN CHASE BANK, N.A. VS NJEGOVEC	HEARING ON MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY JPMORGAN CHASE BANK, N.A.

Tentative Ruling: No tentative ruling. Motion granted. Proposed order and proposed judgment signed by the court.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2600913	STEINER VS THE PALMS HOMEOWNERS ASSOCIATION	HEARING RE: MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT FOR OTHER REAL PROPERTY (OVER \$35,000) OF STEPHEN ANTHONY STEINER BY RHONA KAUFFMAN

Tentative Ruling: Motion to Strike is MOOT in light of court's ruling on the Demurrer to the 1st Amended Complaint.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2600913	STEINER VS THE PALMS HOMEOWNERS ASSOCIATION	HEARING RE: DEMURRER ON 1ST AMENDED COMPLAINT FOR OTHER REAL PROPERTY (OVER \$35,000) OF STEPHEN ANTHONY STEINER BY RHONA KAUFFMAN

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 67.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

7th Cause of Action Legal Malpractice:

The elements of a cause of action for legal malpractice are: (1) an attorney-client relationship; (2) a negligent act or omission; (3) causation; and (4) damages. (*Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 152.) To prevail in a legal malpractice action, simply showing the attorney erred is not enough. (*Filbin v. Fitzgerald* (2012) 211